

Sadhna Rai v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 15 December 2021 · WRIT - C No. 33408 of 2021 · **Writ disposed of: restore supply on deposit of ₹7,83,705 within three weeks; remaining dues to a clause 6.5 application.**

HEADNOTE

On the parties' statements, the Allahabad High Court disposed of a billing-and-disconnection writ by directing the consumer to deposit ₹7,83,705 within three weeks, upon which the disconnected supply would be restored, and by leaving remaining dues to an application before respondent No. 2 (clause 6.5 of the Electricity Supply Code, 2005) to be decided in accordance with law. The Court did not examine whether the bill was exorbitant.

FACTUAL SUMMARY

Sadhna Rai challenged Purvanchal Vidyut Vitran Nigam Ltd. over an alleged exorbitant electricity bill and disconnection. The petitioner said at least ₹7,83,705 was demanded, COVID-19 losses had left the petitioner unable to pay, and that sum would be deposited within three weeks if a fresh demand issued for the balance. The distribution company agreed that deposit of ₹7,83,705 would restore supply and a fresh demand would follow. Respondent No. 3 submitted that remaining dues could be taken to respondent No. 2 under clause 6.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

restoration on deposit; remaining bill to clause 6.5

HOLDING

The writ was disposed of on the parties' statements: the petitioner was directed to deposit ₹7,83,705 within three weeks, and on that deposit the disconnected connection would be restored. Remaining dues were left to an appropriate application before respondent No. 2 — counsel having pointed to clause 6.5 of the Electricity Supply Code, 2005 — who may pass an appropriate order in accordance with law. The Court did not examine whether the bill was exorbitant.

¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Remaining dues after the consented deposit were left to a clause 6.5 application before respondent No. 2 rather than being decided on the writ. ¶ 1

6.5-representation-as-appropriate-remedy Counsel for respondent No. 3 pointed to a clause 6.5 application before respondent No. 2; the Court adopted that course for the remaining amount. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL WAS EXORBITANT AND WHAT SUM REMAINED DUE

Left to an application before respondent No. 2 under clause 6.5, to be decided in accordance with law. ¶ 1